

24STCV09315 24STCV09315

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-08-25
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Case Number: 24STCV09315 Hearing Date: August 25, 2026 Dept: 506

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR THE

COUNTY OF LOS ANGELES - CENTRAL DISTRICT

REVEL MANAGEMENT GROUP, LLC, et al.,

Plaintiffs,

vs.

PICA PICA TEXAS SNACKS, INC., et al.,

Defendants.

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CASE NO.: 24STCV09315

[TENTATIVE] ORDER DENYING MOTION FOR SUMMARY

JUDGMENT

Dept. 506

8:30 a.m.

August 25, 2026

On

April 12, 2024, Plaintiffs Revel Management Group LLC, Laura Mellado Hallman, and

Leslie Quezada filed this action against Defendants Pica Pica TX Snacks Inc. ("Pica

Snacks"), Amanda Castillo, and Eusebio Salazar.

Plaintiffs later named Pica Pica TX Inc. ("Pica TX") as Doe 1.

The

Complaint alleges (1) breach of contract, (2) common count, (3) account stated,

(4) open book account, and (5) quantum meruit/unjust enrichment.

On

May 21, 2026, Plaintiffs filed a motion for summary judgment, or in the alternative, summary adjudication.

REQUEST

FOR JUDICIAL NOTICE

Plaintiffs'

request for judicial notice is granted.

LEGAL

STANDARD

A

plaintiff moving for summary adjudication must satisfy the initial burden of proof

by proving each element of a cause of action.

(Code Civ. Proc., § 437c, subd. (p)(1).)

That includes damages when damages are an element. (*Paramount Petroleum Corp. v. Superior Court*

(2014) 227 Cal.App.4th 226, 241.) Then the

burden shifts to the defendant to show that a triable issue of material fact exists

as to the cause of action or a defense. (Code

Civ. Proc., § 437c, subd. (p)(2).) To establish

a triable issue of material fact, the party opposing the motion must produce "substantial

responsive evidence." (*Sangster v. Paetkau*

(1998) 68 Cal.App.4th 151, 162-163.)

DISCUSSION

Plaintiffs

entered into a series of written agreements with “Pica Pica Candy Inc.” between

2020 and 2023. (Undisputed Material Facts

“UMF” 3-4.) “Pica Pica Candy Inc.” does not

exist. (UMF 5.) Plaintiff relies on discovery admissions to establish

that Pica Snacks was a party to the contracts and received benefits under the contracts. (See UMF 43-44.)

“Any matter admitted in response to a request for

admission is conclusively established against the party making the admission in

the pending action.” (Code Civ. Proc., §

2033.410, subd. (a).) “As a general rule

an admission is conclusive in the action as to the party making it. [Citations.]”

(Murillo v. Superior Court (2006) 143 Cal.App.4th 730, 736.) But the trial court has the power “to determine

the admissibility and relevance of evidence related to admitted facts. . . . The court must have discretion to admit evidence

to elucidate and explain an admission, because the admission of a fact does not

always reflect the party’s reasonable understanding of that fact.” (Fredericks v. Filbert Co. (1987) 189 Cal.App.3d

272, 278.)

After

Defendants’ counsel was relieved, Amanda Castillo prepared and served discovery

responses in which she mistakenly answered them for the wrong entities. (Castillo Decl. ¶¶ 22-25.) There is a triable issue of fact regarding Defendants'

liability under the contracts.

Plaintiffs

also argue that Defendants are the alter ego of each other. (See Motion at pp. 22-24.) Even if Plaintiffs met their initial burden, Defendants

provide evidence demonstrating distinct business operations. (See Castillo Decl. ¶¶ 4-11 & Ex. B; Salazar

Decl. ¶¶ 3-6.)

In

sum, there are triable issues of material fact regarding each Defendant's liability

and obligations under the contracts. Summary

judgment is denied.

CONCLUSION

The

motion for summary judgment is DENIED.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 25th day of August 2026

Hon. Thomas D. Long

Judge of the Superior

Court